



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRM-M-33765-2026

Date of Decision.:15.06.2026

Rijwan

.....Petitioner

Vs.

State of Haryana

.....Respondent

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

**Present:- Mr. Nafeesh Ahmad Khan, Advocate
for the petitioner.**

DEEPAK GUPTA, J. (ORAL)

By way of the present petition filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioner seeks grant of anticipatory bail in case FIR No.86 dated 06.05.2026 registered under Section 13(1) read with Section 3, and 13(3) read with Section 8 of the Haryana Gauvansh Sanrakshan and Gausamvardhan Act, 2015 at Police Station Rozka Meo, District Nuh.

2. Learned counsel for the petitioner contends that the petitioner has been falsely implicated on the basis of secret information. It is argued that no recovery has been effected from the conscious possession of the petitioner and that he is ready to join investigation. Learned counsel further submits that since the alleged recovery already stands effected from the spot, custodial interrogation of the petitioner is not required.

3. Notice of motion.

4. Mr. Anuj Garg, DAG, Haryana accepts notice on behalf of respondent- State.



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5. Prayer is opposed by learned State counsel, who, on instructions from the Investigating Officer, submits that the petitioner was specifically named in the secret information and was identified at the spot during the raid. It is further submitted that substantial quantity of freshly slaughtered cow meat along with articles used for slaughtering were recovered from the place of occurrence. The petitioner is absconding since registration of the FIR, co-accused are yet to be apprehended and custodial interrogation is necessary to unearth the entire conspiracy, ascertain the source and destination of the contraband meat and effect further recoveries.

6. I have heard learned counsel for the parties and perused the paper-book.

7. The allegations in the FIR reveal that acting upon specific secret information, the police party conducted a raid at the disclosed premises. Upon noticing the police, the accused persons allegedly fled from the spot. During the raid, approximately 80/90 kilograms of freshly slaughtered cow meat, besides knives, screwdrivers, weighing machine, wooden log and other articles allegedly used in the commission of the offence, were recovered. The petitioner has been specifically named as one of the persons involved in the illegal activity.

8. At the stage of consideration of anticipatory bail, the Court is not expected to meticulously appreciate the evidence as if conducting a mini-trial. The parameters governing grant of anticipatory bail have been authoritatively laid down by the Hon'ble Supreme Court in ***Gurbaksh Singh Sibbia versus State of Punjab, (1980) 2 SCC 565, Siddharam Satlingappa Mhetre versus State of Maharashtra, (2011) 1 SCC 694*** and ***Sushila Aggarwal versus State (NCT of Delhi), (2020) 5 SCC 1***. The nature and gravity of accusation, the role attributed to the accused, the requirement of



custodial interrogation and the larger societal interest are all relevant considerations.

9. The offences alleged in the present case pertain to illegal slaughter of cow progeny, an activity specifically prohibited under the provisions of the Haryana Gauvansh Sanrakshan and Gausamvardhan Act. The allegations cannot be said to be vague or omnibus. Rather, the petitioner has been specifically named and identified as one of the persons allegedly involved in the illegal activity. The recovery of a substantial quantity of freshly slaughtered cow meat and instruments allegedly used for slaughtering lends prima facie support to the prosecution version at this stage.

10. The contention that no further recovery remains to be effected is also not sufficient to entitle the petitioner to anticipatory bail. Investigation is not confined merely to recovery of physical articles. The investigating agency is required to ascertain the source of the animals, the persons involved in the slaughtering activity, the intended recipients of the meat and the extent of the organised network, if any. Such aspects may legitimately require custodial interrogation, particularly when the accused is alleged to have fled from the spot and has not joined investigation.

11. It is also not disputed that other accused persons are yet to be apprehended. Grant of anticipatory bail at this stage may hamper effective investigation and frustrate efforts of the investigating agency to unravel the complete chain of events.

12. The Court is conscious that anticipatory bail is intended to protect an individual against unwarranted arrest. At the same time, such extraordinary relief cannot be granted as a matter of routine where the allegations disclose commission of a serious offence and custodial interrogation appears necessary for a fair and complete investigation.



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13. Having regard to the nature and gravity of allegations, the specific role attributed to the petitioner, the recovery effected during the raid, the stage of investigation and the requirement of custodial interrogation, this Court does not find it to be a fit case for grant of anticipatory bail.

14. Consequently, the present petition is dismissed.

15. Nothing observed herein shall be construed as an expression on the merits of the case and the investigating agency shall proceed independently in accordance with law.

(DEEPAK GUPTA)
JUDGE

June 15, 2024

Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No